

TENTATIVE RULINGS

DEPT C34

JUDGE H. SHAINA COLOVER

LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all parties involved in the subject matter intend to submit on the tentative ruling and do not desire oral argument, then *counsel for each such party shall call* and advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234** before 12:00 pm on the day of the hearing. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party (or whomever the Court assigns in the ruling) shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Department C34 (NOT N6- Please no reserving/filing of motions in N6) conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html>, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. **No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.**

TENTATIVE RULINGS

Date: June 25, 2026

#	Case Name	Tentative
1.	30-2025-01513512 Kennedy vs. Yari Film Group, LLC	1. Motion to Quash Service of Summons Specially Appearing Defendant, Bob Yari (“Moving Party”) moves to quash the “purported substitute service of the Summons and Complaint . . . on the ground of lack of jurisdiction over Defendant due to defective service.” The motion is made pursuant to Code of Civil Procedure sections 415.20(b) and 418.10. The Motion is unopposed. The Motion is GRANTED. “In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court’s personal jurisdiction over a defendant....When a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service....” (<i>Floveyor Internat., Ltd. v. Superior Court</i> (1997) 59 Cal.App.4th 789, 793 [citing <i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1439-1440]; see also <i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 387 [“When a defendant argues that service of summons did not bring him or her within the trial court’s jurisdiction, the plaintiff has ‘the burden of proving the facts that did give the court jurisdiction, that is the facts requisite to an effective service.’”].) “The Code of Civil Procedure specifies the various methods by which service may be made upon defendants who are sued as individuals.” (<i>American Express Centurion Bank v. Zara</i> (2011) 199 Cal.App.4th 383, 389; Code Civ. Proc., §§ 415.10 et seq.) Code of Civil Procedure section 415.20(b) states: “If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc., § 415.20, subd. (b).)

“However, an individual may be served by substitute service only after a good faith effort at personal service has first been made: the burden is on the plaintiff to show that the summons and complaint ‘cannot with reasonable diligence be personally delivered’ to the individual defendant.” (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 389 [citing § 415.20, subd. (b); *Evartt v. Superior Court* (1979) 89 Cal.App.3d 795, 801.]) “Two or three attempts to personally serve a defendant at a proper place ordinarily qualifies as ‘reasonable diligence.’ ” (*Ibid.*; see also *Rodriguez v. Cho* (2015) 236 Cal.App.4th 742, 750.)

Here, Moving Party correctly argues that service was not proper pursuant to Code of Civil Procedure section 415.20(b) because Plaintiff did not establish a good faith effort at personal service prior to serving the summons and complaint by mail.

Plaintiff filed a “Declaration of Mailing” that was signed by Jesus Alvarez who declared that, on “October 21, 2025, after substituted service was made,” he mailed the summons and complaint. The declaration is devoid of any discussion regarding Alvarez’s good faith attempts to personally serve the summons and complaint on Moving Party prior to service by mail. As such, the declaration does not establish that the summons and complaint could not, with reasonable diligence, be personally delivered on Moving Party.

As discussed above, Plaintiff bears the burden of establishing the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service. The motion is unopposed, however, and therefore Plaintiff has not carried this burden.

Moreover, Plaintiff’s failure to oppose the motion is considered an implied concession regarding the merits of the arguments presented in the motion. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20; *DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566, as modified (Jan. 25, 2000) [“By failing to argue the contrary, plaintiffs concede this issue.”]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [holding that “by failed to address” an issue, the issue is “impliedly concede[d].”]; and *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 [“Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot.”].)

Given the above, the Motion is **GRANTED**.

Moving Party to give notice.

2. 30-2025-01521534

**Marquez vs. Kia
America, Inc.**

**1. Case Management Conference
2. Motion to Strike Portions of Complaint**

Defendant Kia America, Inc. (hereinafter “Kia”) moves to strike paragraphs 32 and 59, and Item 5 from the Prayer, which seek civil penalties pursuant to Civil Code section 1794(c) on the grounds that the Complaint fails to allege facts to show compliance with Code of Civil Procedure section 871.24 and Plaintiff is therefore not entitled to recover civil penalties pursuant to Civil Code section 1794(c).

Initially, the Court notes that Plaintiff’s counsel failed to meet and confer in violation of CCP§435.5. Further lack of adherence to code may result in sanctions.

Based on applicable law, and as set forth below, the **Motion is GRANTED with 20 days leave to amend.**

This is an action for Violations of the Song-Beverly Consumer Warranty Act (CCP §1790, et seq.). Defendant moves for an order striking paragraphs 32 and 59 of the Complaint, and Item 5 from the Prayer, which seek civil penalties pursuant to Civil Code section 1794(c).

Defendant contends that Plaintiff did not plead compliance with CCP §871.24 and is therefore not entitled to civil penalties.

CCP §871.24 provides, in relevant part:

- (b) At least 30 days prior to the commencement of an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code, the consumer shall do all of the following:
- (3) Notify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ("VIN") of the motor vehicle, and a brief summary of the repair history and problems with the motor vehicle.
- (4) Demand that the manufacturer repurchase or replace the motor vehicle.

(e)(1) A request for or action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code shall not be allowed or maintained if both of the following conditions are present:

(A) Within 30 days after receipt of the notice, the manufacturer makes an offer of restitution or replacement of the motor vehicle for the amount provided by subdivision (d) of Section 1793.2 of the Civil Code and Section 871.27, plus reasonable attorney's fees and costs, if the consumer is represented by an attorney.

(B) The motor vehicle replacement or restitution is completed within 60 days from the date of receipt of the original notice.

(h) An action seeking restitution or replacement under Section 871.20 may be commenced without compliance with subdivision (a). In that event, the consumer shall have possession of the motor vehicle at the time of the filing of the complaint, and shall not seek civil penalties, whether by amendment of the complaint or otherwise. If, however, notice is provided pursuant to subdivision (a) and the manufacturer fails to comply with their obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.

In opposition, Plaintiff does not deny that Section 871.24 is applicable to this case. However, Plaintiff contends that he has complied with the statute. In support of that position, Plaintiff submits the Declaration of Attorney Joon Kim with three exhibits attached. Yet, the grounds for a motion to strike (or opposition thereto) must appear on the face of the pleading under attack, or from matters which the court may judicially notice (e.g., the court's own files or records). [CCP § 437; *CPF Agency Corp. v. R&S Towing Service* (2005) 132 CA4th 1014, 1032.] Plaintiff's facts and evidence in support of the Opposition are outside the four-corners of the Complaint and cannot be considered.

		Had counsel properly met and conferred prior to filing this motion, it likely would not have been necessary. <u>Accordingly, the Motion is GRANTED with 20 days leave to amend.</u> Defendant to give notice.
4.	30-2024-01440591 Feldblumb vs. Ruvalcaba	1. Motion to Compel Deposition (Oral or Written) Defendants Bernardo Ruvalcaba and Elba Leticia Lopez Ruvalcaba (together, “Defendants”) seek an order compelling third party Richard Mungo, D.D.S. to produce documents in response to the subpoena duces tecum served on September 9, 2025. Based on applicable law, as set forth herein, said motion is DENIED. Preliminarily, the Court notes that the proof of service of this motion does not indicate that the deponent was served. While Attorney Leeper declares that this motion was personally served on the deponent, “as the attached proof of service sets forth,” there is no such indication in the proof of service. (Leeper Decl. ¶ 8.) Even if the motion had been properly served, however, it is untimely. A party may serve a nonparty with a deposition subpoena commanding the production of business records for copying. (Code Civ. Proc., §§ 2020.010, subds.(a)(3), (b), 2020.020, subd. (b).) Proper service of a deposition subpoena obligates any resident of California to appear, testify and produce whatever documents or things are specified in the subpoena; and to appear in any proceedings to enforce discovery. (Code Civ. Proc., § 2020.220, subd. (c).) If the nonparty deponent does not comply, the requesting party may move for an order directing compliance with the subpoena. (See Code Civ. Proc., § 2025.480; see also Code Civ. Proc., § 1987.1.) Such a motion may be made pursuant to the authority for motions to compel depositions generally under Code of Civil Procedure section 2025.480. (See <i>Unzipped Apparel, LLC v. Bader</i> (2007) 156 Cal.App.4th 123, 127, 131.) The motion must be brought within 60 days after completion of the deposition record. (CCP § 2025.480(b); see <i>Unzipped Apparel, LLC v. Bader</i> (2007) 156 Cal.App.4th 123, 127) The deposition record is “complete” as of the “date specified for production” or the date objections are served. It is irrelevant that some documents might be produced thereafter. (<i>Board of Registered Nursing v. Sup.Ct. (Johnson & Johnson)</i> (2021) 59 Cal.App.5th 1011, 1032-1033.) “A nonparty must comply (or not) with the subpoena on the date specified for production. If a party is not satisfied with the nonparty's compliance, the party has 60 days in which to meet and confer with the nonparty. These meet and confer efforts do not affect the mandatory 60-day deadline. The meet and confer process is part of the 60-day period in which to file a motion; it does not extend it.” (<i>Board of Registered Nursing v. Superior Court of Orange County, supra</i>, 59 Cal.App.5th at 1034.) The 60-day deadline is mandatory and jurisdictional. (<i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316, 321.) Here, the date for production was September 24, 2025. (Leeper Decl., ¶ 2, Exh. A.) Attorney Leeper declares that the deponent neither objected to the subject subpoena nor has the custodian

		of records produced the requested documents; nor has plaintiff objected to the subject subpoena or filed any motion to quash. (Leeper Decl. ¶ 6.) This motion was filed on December 1, 2025, which is 68 days after the date for production. Accordingly, the motion is untimely and the Court has no jurisdiction to entertain it. Accordingly, it is DENIED. Moving Party to give notice.
5.	30-2024-01431856 Vargas vs. Hernandez	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Production Plaintiff Yharetzy Vargas, a minor by and through her guardian ad litem, Yuliana Vargas Pompa (“Plaintiff”) moves to compel defendant Mario Lombera (“Defendant”) to serve verified responses to Form Interrogatories (Set One), Special Interrogatories (Set One), and Demands for Production (Sets One) and for an order imposing monetary sanctions against Defendant for her failure to serve timely responses. Verified responses to the discovery at issue have been provided. Thus, the Motions are DENIED as MOOT. However, Plaintiff’s requests for monetary sanctions against Defendant and her counsel are GRANTED in the reduced amount of \$600.00, as the Court finds no substantial justification for Defendant’s delay in providing responses until after these Motions were filed. (Code Civ. Proc., §§ 2030.300(d), 2031.310(h); Cal. Rules of Court, rule 3.1348(a).) Sanctions to be paid <u>within 30 days</u>. Moving party to give notice.
6.	30-2024-01413404 Ben’s Asphalt & Maintenance Company, Inc vs. W&Z Development Corporation	1. Case Management Conference 2. Demurrer to Amended Complaint 3. Demurrer to Amended Complaint 4. Motion for Attorney Fees 5. Motion to Strike Portions of Complaint <u>DEMURRER AND MOTION TO STRIKE:</u> Defendant W & Z Development Corporation dba Western Pacific Construction Services (“Defendant”) demurs to the second cause of action for fraud and moves to strike Plaintiff’s claim to punitive damages as alleged in the operative Second Amended Complaint (“SAC”). Plaintiff Ben’s Asphalt & Maintenance Company, Inc. (“Plaintiff”) opposes the demurrer and motion to strike. I. <u>Demurrer</u> A complaint, with certain exceptions, need only contain a ‘statement of the facts constituting the cause of action, in ordinary and concise language’ (Code Civ. Proc., § 425.10, subd. (a)(1)) and will be upheld ‘ “so long as [it] gives notice of the issues sufficient to enable preparation of a defense.” ’ [Citation.]” (<i>Morris v. JPMorgan Chase Bank, N.A.</i> (2022) 78 Cal.App.5th 279, 292.)

“‘[T]o withstand a demurrer, a complaint must allege ultimate facts, not evidentiary facts or conclusions of law.’ [Citation.]” (*Morris v. JPMorgan Chase Bank, N.A.* (2022) 78 Cal.App.5th 279, 292.) “However, ‘ “[t]he fact that a party has alleged more than is required to justify his right does not obligate him to prove more than is essential, and the unnecessary allegations will be treated as surplusage unless the opposing party would be prejudiced.”’ (*Ibid.*)

“No error or defect in a pleading is to be regarded unless it affects substantial rights.” (*Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240.) “The primary function of a pleading is to give the other party notice so that it may prepare its case [Citation], and a defect in a pleading that otherwise properly notifies a party cannot be said to affect substantial rights.” (*Ibid.*)

Here, Defendant demurs to the second cause of action for fraud.

“The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.)

“ ‘Promissory fraud’ is a subspecies of the action for fraud and deceit.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) “A promise to do something necessarily implies the intention to perform; hence, where a promise is made without such intention, there is an implied misrepresentation of fact that may be actionable fraud.” (*Ibid.*; see also *Building Permit Consultants, Inc. v. Mazur* (2004) 122 Cal.App.4th 1400, 1414.)

“An action for promissory fraud may lie where a defendant fraudulently induces the plaintiff to enter into a contract.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [citing *Chelini v. Nieri* (1948) 32 Cal.2d 480, 487, 196 P.2d 915 (“tort of deceit” adequately pled where plaintiff alleges “defendant intended to and did induce plaintiff to employ him by making promises ... he did not intend to (since he knew he could not) perform” (fn. omitted)]]).

“In such cases, the plaintiff’s claim does not depend upon whether the defendant’s promise is ultimately enforceable as a contract.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.) “If it is enforceable, the [plaintiff] ... has a cause of action in tort as an alternative at least, and perhaps in some instances in addition to his cause of action on the contract.” (*Ibid.*) “Recovery, however, may be limited by the rule against double recovery of tort and contract compensatory damages.” (*Ibid.*)

Fraud causes of action must be pled with specificity. “This particularity requirement necessitates pleading *facts* which show how, when, where, to whom, and by what means the false representations were made.” (*State ex rel. Edelweiss Fund, LLC v. JPMorgan Chase & Co.* (2023) 90 Cal.App.5th 1119, 1136–1137, *as modified on denial of reh’g* (May 30, 2023), *review denied* (Aug. 9, 2023) [internal citations omitted]; see also *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) “The complaint must plead the time, place, and contents of the false representations, as well as the identity of the person making the misrepresentation and what he obtained thereby.” (*Ibid.*)

Here, the Court finds that Plaintiff has sufficiently stated a cause of action for fraud as alleged in paragraphs 28 to 34 of the SAC. Plaintiff alleges that “[a]t the time the Agreements were entered into in April of 2023,” “Western Pacific, by and through George Zeber and Ryan Zeber made oral communications with Plaintiff as well as by virtue of the Contract they entered assuring Plaintiff that Western Pacific would abide by the terms and conditions of the Contract, including

making all payments owed to Plaintiff.” (SAC, ¶ 29.) Plaintiff further states that to induce Plaintiff’s performance, “Western Pacific, by and through George Zeber and Ryan Zeber, continually stated on multiple occasions that payments would be made as agreed in order to induce performance on the part of the Plaintiff.” (*Ibid.*) Plaintiff provides specific examples of these alleged fraudulent inducements. (*Ibid.*)

Plaintiff also alleges that at the time Defendant made such promises, “Western Pacific and the Zebers had no intention of performing these promises.” (SAC, ¶ 30.) “The promises were made by Western Pacific, George Zeber, and Ryan Zeber with the intent to induce Plaintiff to enter into the Contract detailed herein.” (SAC, ¶ 31.)

“At the time the promises were made and at the time Plaintiff took the actions alleged herein, Plaintiff was ignorant of Western Pacific, George Zeber, and Ryan Zeber’s secret intention not to perform, and could not, in the exercise of reasonable diligence, have discovered Western Pacific, George Zeber, and Ryan Zeber’s secret fraud. In justifiable and actual reliance on Western Pacific, George Zeber, and Ryan Zeber’s promises, Plaintiff acted as set forth herein. If Plaintiff had known of Western Pacific, George Zeber, and Ryan Zeber’s actual intentions, Plaintiff would not have taken these actions.” (SAC, ¶ 32.) Plaintiff also alleges the requisite damages.

Given the above, the Court finds that Plaintiff has sufficiently alleged a fraud cause of action against Defendant W & Z Development Corporation dba Western Pacific Construction Services at this stage of the litigation.

The demurrer is **OVERRULED**.

II. Motion to Strike

Defendant also moves to strike allegations related to Plaintiff’s claim for punitive damages.

Civil Code section 3294 states:

“(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.

(b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.”

Importantly, corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive.” (*Cruz v. HomeBase* (2000) 83 Cal.App.4th 160, 167.) “An award of punitive damages against a corporation therefore must rest on the malice of the corporation’s employees.” (*Id.*)

“But the law does not impute every employee’s malice to the corporation.” (*Cruz v. HomeBase* (2000) 83 Cal.App.4th 160, 167.) “Instead, the punitive damage statute requires proof of malice

among corporate leaders: the ‘officer[s], director[s], or managing agent[s].’” (*Id.*) “Managing agents” are employees who “exercise[] substantial discretionary authority over decisions that ultimately determine corporate policy,” such as those “decisions that set these general principles and rules.” (*Id.*, at pp. 167-68; *Roby v. McKesson Corp.* (2009) 47 Cal.4th 686, 714-15.)

Defendant argues that Plaintiff is not entitled to collect punitive damages for obligations arising from a written contract. Plaintiff, however, also pleads a fraud cause of action. Plaintiff sufficiently alleges the requisite disregard of Plaintiff’s rights such that Plaintiff’s claims for punitive damages is sufficient at this stage of the litigation. For example, paragraphs 18-22 and 28-34 all support Plaintiff’s punitive damages claim.

The Motion to Strike is **DENIED**.

Plaintiff to give notice.

DEMURRER:

Defendant Antigua Owner’s Association Of Monarch Beach (“Defendant”) demurs to the third cause of action for quantum meruit as alleged in the Second Amended Complaint.

Plaintiff Ben’s Asphalt & Maintenance Company, Inc. (“Plaintiff”) opposed the motion.

“[I]n order to recover under a quantum meruit theory, a plaintiff must establish *both* that he or she was acting pursuant to either an *express or implied request* for such services from the defendant *and* that the services rendered were *intended to and did benefit* the defendant.” (*Day v. Alta Bates Medical Center* (2002) 98 Cal.App.4th 243, 248.) “Quantum meruit refers to the well-established principle that ‘the law implies a promise to pay for services performed under circumstances disclosing that they were not gratuitously rendered.’” (*Miller v. Campbell, Warburton, Fitzsimmons, Smith, Mendel & Pastore* (2008) 162 Cal.App.4th 1331, 1344.)

“ To recover in quantum meruit, a party need not prove the existence of a contract [citations], but it must show the circumstances were such that ‘the services were rendered under some understanding or expectation of both parties that compensation therefor was to be made.’ ” (*Miller v. Campbell, Warburton, Fitzsimmons, Smith, Mendel & Pastore* (2008) 162 Cal.App.4th 1331, 1344.)

The first element requires “that the plaintiff have bestowed some benefit on the defendant.” (*Day v. Alta Bates Medical Center* (2002) 98 Cal.App.4th 243, 249.) “The measure of recovery in *quantum meruit* is the reasonable value of the services rendered *provided* they were of direct benefit to the defendant.” (*Ibid.*)

The second element requires “either an explicit or implicit request for the services.” (*Day v. Alta Bates Medical Center* (2002) 98 Cal.App.4th 243, 249.) Put another way, “a recipient of services performed either requested or acquiesced in them ...” (*Ibid.*) “[C]ompensation for a party’s performance should be paid by the person whose request induced the performance.” (*Ibid.*)

Here, the Court finds that Plaintiff has sufficiently alleged a cause of action for quantum meruit.

Plaintiff alleges that “On or about April of 2023, Defendants expressly requested that Plaintiff provide labor, materials, and equipment to perform certain asphaltting services on the roads within the Subject Property. These certain labor, materials, and equipment provided by the Plaintiff were intended to and did benefit the Subject Property and Defendants.” (SAC, ¶ 36.)

Plaintiff further alleges that “upon information and belief, Antigua HOA also implicitly requested the asphalt services of Plaintiff by virtue of having its agent and contractor, Western Pacific, hire the Plaintiff as a subcontractor to perform the asphalt road improvements. Moreover, upon information and belief, Antigua HOA was apprised of the Contract and services Plaintiff would be performing for the benefit of the Antigua HOA. Accordingly, Antigua HOA was aware that payment would be owed to Plaintiff for performing the asphaltting service improvements as referenced herein on the Subject Property.” (SAC, ¶ 37.)

Thus, Plaintiff alleges that Defendant Antigua Owner’s Association Of Monarch Beach requested Plaintiff’s asphalt services/asphalt road improvements, Plaintiff provided those services and therefore Defendant received the benefit of the asphalt services/asphalt road improvements, and Plaintiff was never paid for those services/improvements.

This is sufficient to state a cause of action for quantum meruit.

The Demurrer to the third cause of action for quantum meruit is **OVERRULED**.

Plaintiff to give notice.

MOTION FOR ATTORNEY’S FEES:

Defendant Antigua Owner’s Association of Monarch Beach (“Defendant”) moves for \$5,602.50 in attorney fees (13.5 hours at \$415/hour) plus \$120.00 in costs, for a total of \$5,722.50, in favor of Defendant Antigua Owner’s Association of Monarch Beach based on the Court’s order granting Defendant’s motion to expunge the mechanic’s lien. The motion is made pursuant to Civil Code section 8488(c) and Code of Civil Procedure sections 1032 and 1033.5.

Plaintiff Ben’s Asphalt & Maintenance Company, Inc. (“Plaintiff”) opposes the motion.

Civil Code section 8488 states:

“(a) At the hearing both (1) the petition and (2) the issue of compliance with the service and date for hearing requirements of this article are deemed controverted by the claimant. The petitioner has the initial burden of producing evidence on those matters. The petitioner has the burden of proof as to the issue of compliance with the service and date for hearing requirements of this article. The claimant has the burden of proof as to the validity of the lien.

(b) If judgment is in favor of the petitioner, the court shall order the property released from the claim of lien.

(c) The prevailing party is entitled to reasonable attorney’s fees.” (Civ. Code, § 8488.)

Code of Civil Procedure section 1032 defines the prevailing party as follows:

“ ‘Prevailing party’ includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the ‘prevailing party’ shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.” (Code Civ. Proc., § 1032, subd. (a)(4).)

Here, the Court granted Defendant’s unopposed Motion to Expunge the Mechanics Lien on November 6, 2025. (ROA 80.) Thus, Defendant is the prevailing party.

Defendant asks for \$5,602.50 in attorney fees (13.5 hours at \$415/hour) plus \$120.00 in costs, for a total of \$5,722.50. In his declaration, Defense counsel testifies to the following:

“I have been practicing law since 2006 and I have significant trial experience. Based upon my conversations with other Orange County attorneys, my rate of \$415 per hour is substantially lower than rates billed by similarly situated attorneys in Orange County for experienced litigators with more than 18 years experience. Association requests a lodestar of \$5,602.50 for necessary defense work from inception of the Mechanics’ Lien issue through resolution, plus \$60.00 for the motion to expunge, and, \$60.00 for this motion. I was the only biller on this particular matter. My billing is broken down as follows:

- 9 hours in meeting and conferring, conducting legal and fact research, and drafting the motion and appearing at the hearing, plus preparing the formal order.
- 3.5 hours to conduct legal and fact research and prepare this motion.
- 1.0 hour anticipated to be expended to reply to any opposition and appear at the hearing.

In total, I will have spent 13.5 hours on the motion to expunge and this motion. The Association also incurred costs of \$60 for the motion to expunge, and \$60 for this motion.” (ROA 104, Declaration of Adam Obeid, ¶ 9.)

The Court is not persuaded by Plaintiff’s arguments in opposition to the motion for attorney fees. Plaintiff did not file an opposition to the motion to expunge the mechanic’s lien and did not carry its burden of proof as to the validity of the lien. Plaintiff could have filed an opposition and notified the Court that the motion to expunge the mechanic’s lien was moot because Plaintiff removed (1) that cause of action from the operative complaint and (2) the lien. Plaintiff did not do so.

Now, Plaintiff argues that removing the cause of action related to the mechanics lien shows good faith and awarding fees for the motion to expunge would be unjust. Removing the cause of action related to the mechanics lien does not, however, establish that Plaintiff removed the “Mechanics Lien recorded by Plaintiff in relation to this matter, identified as Instrument No. 2024000129095, recorded with the Orange County Recorder on May 23, 2024.”

		Given the above, the Court finds that Defendant is the prevailing party and that the attorney fees sought are reasonable under the circumstances and pursuant to a lodestar analysis. The Motion for Attorney Fees and Costs is GRANTED in the amount requested. The Court finds that Defendant Antigua Owner's Association of Monarch Beach is entitled to \$5,602.50 in attorney fees plus \$120.00 in costs, for a total of \$5,722.50. Moving Party to give notice.
7.	30-2022-01246328 Aznavian vs. Castle Mortgage Corporation	1. Motion for Attorney Fees Plaintiff Camillia Aznavian moves the Court for an Order for Attorneys' Fees. This motion is DENIED. A plaintiff who obtains a default judgment by written declaration, as here, may <i>not</i> seek fees by means of a postjudgment motion. Plaintiff is entitled only to those fees <i>included in the default judgment</i>. [<i>Garcia v. Politis</i> (2011) 192 CA4th 1474, 1479.] Here, no attorney's fees were included in the Default Judgment; and thus, none can be recovered. Clerk to give notice.
8.	30-2022-01276823 Bethesda University vs. Kim	1. Motion for Summary Judgment and/or Adjudication Plaintiff Bethesda University ("Plaintiff" or "Bethesda") moves for summary judgment or summary adjudication against Defendants Pan-Ho Kim; Kyung Moon Kim; Young Hoon Lee; Sun Wook Hwang; Seung Hyun Moon; Samuel Minje Cho; Chun Soo Kim; Ji Yeon Kim; Esther Cho; Ho Yun Jun; Yong Woo Choi; Han Yeh Chang; Yong Jun Kim; Yu Chul Chin; Byeong Cho Yang; and Seunghwa Ji ("Defendants") on the first cause of action for fraudulent deceit, second cause of action for breach of fiduciary duty, and of the fact that Plaintiff is entitled to recover at least \$4,310,249.21 in damages for the period June 1, 2022 through May 31, 2023 on the first and second causes of action. Plaintiff has not sought summary adjudication or summary judgment with regard to the third cause of action for declaratory relief. Thus, complete summary judgment cannot be granted and the motion to the extent it seeks summary judgment is DENIED. A plaintiff moving for summary adjudication bears the initial burden of proving each element of the cause of action. (Code Civ. Proc., § 437c(p)(1).) "A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (<i>Id.</i>, § 437c(f)(1).) <u>Fraudulent Deceit</u> The "elements of a cause of action for fraud are: (1) a misrepresentation, which includes a concealment or nondisclosure; (2) knowledge of the falsity of the misrepresentation i.e., scienter; (3) intent to induce reliance on the misrepresentation; (4) justifiable reliance; and (5) resulting damages." (<i>Cadlo v. Owens-Illinois, Inc.</i> (2005) 125 Cal.App.4th 513, 519.) Plaintiff's motion is supported by the Declaration of Seung Je Cho, its former President. Mr. Cho asserts that during the period of June 1, 2022 through May 31, 2023, Defendants claimed to be Bethesda's governing board and officers and acted as though they controlled Bethesda's

governance and finances. (Declaration of Seung Je Cho, ¶¶ 5-6.) Defendants communicated to Bethesda employees and its banks and financial institutes that they were authorized signatories and, based on these representations, Bethesda's staff and counterparties treated Defendants as having authority to sign checks, direct wire transfers, and approve commercial credit-card charges for Bethesda. (*Id.* ¶¶ 7-8.)

Mr. Cho's declaration does not satisfy Plaintiff's burden as the moving party of showing that all defendants committed fraud. Mr. Cho points to no specific statements or misrepresentations made by any of the defendants or any facts regarding justifiable reliance on any misrepresentations. Further, actual fraud is generally a question of fact. (Civ. Code, § 1574.)

Moreover, Plaintiff claims as its damages all of the actual expenses incurred during the relevant time period which, as Defendants point out, includes legitimate expenses such as payments for utilities. Plaintiff offers no persuasive argument as to why these routine expenses should be included in Plaintiff's claimed damages resulting from the purported fraud. Mr. Cho asserts that "[m]any of these expenditures would not have been authorized had a legitimate board been in control of Bethesda during this period." (Cho Decl., ¶ 16.) However, this impliedly concedes that some of the expenditures would have been authorized in the ordinary course of business.

In light of the above, the motion as to the **fraud cause of action is DENIED.**

Breach of Fiduciary Duty

"The elements of a cause of action for breach of fiduciary duty are: (1) the existence of a fiduciary duty; (2) the breach of that duty; and (3) damage proximately caused by that breach. [Citation.]" (*IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 646.)

Plaintiff argues that Defendants, as de facto directors and officers, owed Bethesda fiduciary duties of loyalty and care which were breached by Defendants' use of university resources toward expenditures that are inconsistent with Bethesda's educational mission and historical practices.

As with the fraud claim, Plaintiff has failed to carry its burden to show that the claimed total of damages were proximately caused by any breach of fiduciary duty by Defendants. Again, the only evidence in support is Mr. Cho's declaration, which fails to establish that all of the transactions included in the total were improper and would not have been authorized by a legitimate board.

Thus, the motion as to the **breach of fiduciary duty cause of action is DENIED.**

The motion as to the **third issue of the amount of damages** Plaintiff is entitled to recover is also **DENIED** based on Plaintiff's failure to establish that all damages were proximately caused by any misconduct of Defendants.

Defendants' **evidentiary objections nos. 1-15** are **OVERRULED.**

Moving party to give notice.

9.	30-2025-01470501 Chastain vs. California Department of Transportation	1. Motion for Continuance-Other (Defendants' MSJ) Plaintiff, Chantal Erica Chastain, by and through Eric Chastain and Linda Chastain, as Conservators of Chantal Erica Chastain ("Plaintiff"), moves for an order continuing Defendant Ware Disposal, Inc.'s Motion for Summary Judgment, or in the Alternative, Summary Adjudication, and extending Plaintiff's opposition deadline, pursuant to Code of Civil Procedure section 437c(h) and California Rules of Court, rule 3.1332, to permit Plaintiff to receive and review outstanding discovery responses and to conduct further depositions essential to oppose the Motion for Summary Judgment. Plaintiff contends that the Motion for Summary Judgment, or in the Alternative, Summary Adjudication filed by Defendant, Ware Disposal, Inc. ("Ware") should be continued along with Plaintiff's deadline to file an opposition thereto as Ware has outstanding discovery responses and there are depositions that have yet to be taken, including the depositions of the person(s) most knowledgeable ("PMK") for Ware, as well as Defendants California Department of Transportation ("Caltrans") and Guy F. Atkinson Construction, LLC ("Atkinson"), which are necessary and essential to opposition Ware's motion for summary judgment. Plaintiff asserts that this discovery is necessary so that Plaintiff can meaningfully prepare an opposition to Ware's motion for summary judgment which rests on the factual contention that it bore no responsibility for the placement of the dumpster involved in the collision and exercised no control over the area, and argues that the reckless conduct of the vehicle owner, Dylan Douglas Glick ("Glick"), constitutes an unforeseeable intervening act that severs any causal connection between Ware's alleged conduct and Plaintiff's severe injuries such that it has no liability for Plaintiff's claims for premises liability and negligence. Ware contends that the motion is now partially moot as the deposition of Ware's PMK was completed on May 13, 2026, during which Plaintiff had the opportunity to obtain all the facts purportedly essential to contesting Ware's motion for summary judgment. Ware also contends that Ware's PMK made clear that Ware was not involved in the planning or safety of the project and thus has no information regarding Traffic Control Plans. Ware asserts that Plaintiff has not met her burden under section 437c(h) as the depositions of Caltrans' and Atkinson's PMKs are not essential to opposing Ware's motion for summary judgment, and that the discovery sought from these separate depositions would not address the fact of the unforeseeable conduct of Defendant Glick such that even if Plaintiff obtained this discovery, it would not produce evidence of any conduct leading up to the incident that would have permitted Ware a reasonable opportunity to prevent it, and thus, is not essential to opposing Ware's motion for summary judgment such that a continuance is not warranted. "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." (Code Civ. Proc. § 437c(h).) A continuance is a matter within the broad discretion of the court but is "virtually mandated 'upon a good faith showing by affidavit that a continuance is needed to obtain facts essential to justify opposition to the motion.'" [Citation.]' [Citation.]" (<i>Bahl v. Bank of America</i> (2001) 89 Cal.App.4th 389, 395.) Continuances are to be liberally granted." (<i>Ibid.</i>) "Where the opposing party submits an adequate affidavit showing that essential facts may exist but cannot be presented timely, the court must either deny summary judgment or grant a continuance. [Citation.]" (<i>Dee v. Vintage Petroleum, Inc.</i> (2003) 106 Cal.App.4th 30, 34-35.) "The nonmoving party seeking a
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continuance ‘must show: (1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts. [Citations.]’ [Citation.]” (*Fraze v. Seely* (2002) 95 Cal.App.4th 627, 633.) “[T]he affiant is not required to show that essential evidence does exist, but only that it may exist.” (*Id.* at p. 634.)

“The affidavit or declaration in support of the continuance request must detail the specific facts that would show the existence of controverting evidence. [Citations.]” (*Lerma v. County of Orange* (2004) 120 Cal.App.4th 709, 715 (“*Lerma*”).) “The party seeking the continuance must justify the need, by detailing both the particular essential facts that may exist and the specific reasons why they cannot then be presented.” (*Ibid.*) The declaration should also provide an estimate of the time necessary to obtain such evidence, and the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (Code Civ. Proc. § 437c(h); see *Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 420 [declaration that “additional information and testimony” required to “adequately respond to Defendant’s Motion” insufficient]; *Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 254 [merely stating “further discovery or investigation is contemplated” not sufficient].)

Here, Plaintiff’s motion is supported by the declaration of counsel, Kane Handel, who provides that outstanding discovery responses from Defendants remains due on May 26, 2026, which will likely require Plaintiff’s meet and confer as it has had to do with prior discovery responses by Ware, and that these responses are directly relevant to the issues raised in Ware’s motion for summary judgment and are essential for Plaintiff to prepare a meaningful opposition. (Declaration of Kane Handel, ¶ 10.)

With regards to the deposition of Ware’s PMK, there is no dispute that it was completed on May 13, 2026, as asserted in the opposition.

The reply contends that Ware’s PMK deposition did not eliminate the need for additional discovery, and instead, revealed additional factual issues, identified additional witnesses, i.e., Maria Juarez from Ware’s billing department, and disclosed the existence of additional responsive documents, i.e., hard-copy work orders referenced during the PMK deposition, that were not previously produced. Plaintiff also contends that Ware’s PMK lacked personal knowledge regarding whether any representative of Atkinson Construction was present when the subject dumpster was delivered, and could not establish who was actually present at the time of delivery, who accepted delivery, who directed placement, what instructions were given, or what communications occurred when the dumpster was delivered to the site. These assertions are not supported by evidence, such as a declaration.

While the motion and reply detail that facts essential to justify opposition that may exist to dispute Ware’s argument in its motion for summary judgment that it has no liability because Ware’s sole role in this incident was delivery and pick up of trash dumpsters, the declaration supporting the motion does not. Nor does the declaration discuss the depositions of Caltrans’ PMK and Atkinson’s PMK.

A continuance is not mandatory where the party opposing the motion fails to submit an affidavit that outstanding discovery could lead to evidence necessary to justify opposition, and it is not an abuse of discretion to deny a continuance under such circumstances. (*Scott v. CIBA Vision Corp.* (1995) 38 Cal.App.4th 307, 325-326.) Nonetheless, “[w]hen a continuance of a summary judgment motion is not mandatory, because of a failure to meet the requirements of Code of Civil

Procedure section 437c, subdivision (h), the court must determine whether the party requesting the continuance has nonetheless established good cause therefor.” (*Lerma, supra*, 120 Cal.App.4th at p. 716; see *Chavez v. 24 Hour Fitness USA, Inc.* (2015) 238 Cal.App.4th 632, 643, 644 [abuse of discretion to refuse continuance when papers showed proposed discovery “essential” to the opposition].) “That determination is within the court’s discretion. [Citations.]” (*Lerma, supra*, 120 Cal.App.4th at p. 716.)

In continuing a motion for summary judgment, a plaintiff has two options: (1) comply with Code of Civil Procedure section 437c, subdivision (h) and make a timely request for continuance along with the submission of a proper affidavit; or where the required showing under this subdivision cannot be made, (2) seek a continuance under the ordinary discretionary standard applied to requests for a continuance which requires a showing of good cause. (*Hamilton v. Orange County Sheriff’s Dept.* (2017) 8 Cal.App.5th 759, 764-765.) “ ‘[I]n deciding whether to continue a summary judgment to permit additional discovery courts consider various factors, including (1) how long the case has been pending; (2) how long the requesting party had to oppose the motion; (3) whether the continuance motion could have been made earlier; (4) the proximity of the trial date or the 30-day discovery cutoff before trial; (5) any prior continuances for the same reason; and (6) the question whether the evidence sought is truly essential to the motion.’ [Citation.]” (*Id.* at p. 765.)

Although Plaintiff has not presented an affidavit which sufficiently details that essential facts to justify opposition may exist, but cannot timely be presented, Plaintiff has provided sufficient good cause for a continuance for the completion of discovery, including the receipt of complete discovery responses from Ware, and the completion of the depositions of the PMKs for co-Defendants, Caltrans and Atkinson.

In addition, this case has been pending for less than one year and three months, the trial is currently set for July 6, 2027, there is no prior continuance, and the instant motion for continuance was filed on April 28, 2026, a little over three weeks after Ware filed its motion for summary judgment on April 3, 2026.

Under these circumstances, the Court finds that there is good cause for a continuance for the completion of discovery, including Ware’s responses to Plaintiff’s written discovery, and the depositions of the PMKs for Caltrans and Atkinson. Plaintiff’s **motion for continuance is therefore GRANTED.**

The Court will hear from the parties as to the status of this discovery and time necessary to complete this discovery prior to setting the new hearing date and continuing the trial.

In light of the foregoing, the Court will allow Plaintiff to submit **amended opposing papers** to replace the original opposing papers. Plaintiff to file and serve amended opposing papers no later than 20 days before the continued hearing date.

Ware may file and serve **amended reply papers** no later than 11 days before the continued hearing date.

Plaintiff to give notice.